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**\*\*File No.: EXP202309238\*\***

**\*\*RESOLUTION OF\*\***

**\*\*PROCEEDING OF WARNING\*\***

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

**\*\*BACKGROUND\*\***

**\*\*FIRST:\*\*** GUARDIA CIVIL - **\*\*\*POST.1** (\*hereinafter, the complainant) on June 26, 2023, submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity identified as VILATECNOLOGÍA, S.L. with NIF B66841966 (hereinafter, the defendant). The reasons for the complaint are as follows:

The complainant provides a Complaint Report dated June 21, 2023, which states that the complained party is responsible for an establishment that has a video surveillance system inside, which is not adequately signposted as it lacks the mandatory informative signs for the monitored area as established by data protection regulations and also lacks informative forms regarding data protection available to clients and users.

Along with the notification, photographic material of the location of the events is provided as Annex I, confirming the infringement in question, as the informative signage does not comply with the requirements of the current regulations.

**\*\*SECOND:\*\*** On April 3, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning proceeding against the defendant for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

**\*\*THIRD:\*\*** The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was subject to an attempted notification as evidenced by the acknowledgment of receipt in the file.

As certified by the Official Postal Service, it was resolved to return it due to on May 2, 2024.

**\*\*FOURTH:\*\*** Upon consulting the database of this Agency, the initiation agreement of the proceeding with file number EXP202309238 was published in the B.O.E on August 1, 2024.

**\*\*FIFTH:\*\*** Once the deadline granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the defendant.

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**\*\*SIXTH:\*\*** On July 24, 2024, a request for careful collaboration from the Security Forces and Corps was made, as it had not been possible to ascertain an effective address concerning the establishment subject to the complaint.

If the complained establishment is still at the same address provided or, if applicable, can clarify whether it has closed or provide an alternative address for the main responsible party.

**\*\*SEVENTH:\*\*** Upon consulting the database of this Agency, it is noted that the electronic notification of the previously referenced document has expired due to the lapse of the established deadline for appearance, as of August 4, 2024.

**\*\*LEGAL GROUNDS\*\***

**\*\*|\*\***

**\*\*Competence\*\***

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this proceeding.

Furthermore, Article 63.2 of the LOPDGDD states: "The proceedings processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

**\*\*||\*\***

**\*\*Information to be provided when personal data is obtained from the data subject\*\***

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, whereby:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all of the following information at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;

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- e) the recipients or categories of recipients of the personal data, if applicable;
  - f) if applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.
2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:
- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
  - b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
  - c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
  - d) the right to lodge a complaint with a supervisory authority;
  - e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
  - f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

### III

The principle of the presumption of innocence prevents the imposition of an administrative infringement when there is no evidence obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the data subject.

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The presumption of innocence must apply without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the presentation of evidence and a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: “that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal.

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the presentation of evidence and a contradictory procedure in which the parties can defend their own positions. According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

### IV

#### Conclusion

After analyzing the evidence provided by the acting force, it has not been possible to identify the main responsible party for the system installed at the indicated address.

In the Act (Inspection) of the acting force, Casa del Móvil— (...) is specified as the main responsible party.

Notification attempted via postal service at the indicated address was returned as , which has been verified by the Official Postal Service as recorded in the information system of this agency.

In this regard, the Supreme Court ruling of July 10, 2007 (rec. 306/2002) specifies that “it is the Administration that must demonstrate culpability, as it is not the interested party who must prove culpability.”

Therefore, based on the above, it has not been possible to identify the main responsible party for the installation, nor has the responsible party been able to express themselves regarding the veracity of the facts in question, which is why the current procedure is archived.

In the event of new evidence being presented concerning the described facts, this agency will proceed to analyze it again, needing to specify the responsible party for the installation, the actual address where the cameras are installed, and the specific date of the investigative actions, providing the necessary verifiable evidence.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the current procedure as the described infringement could not be substantiated in the terms established in the current regulations.

THIRD: TO NOTIFY this resolution to the entity VILATECNOLOGÍA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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